



NTHOPPA (PTY) LTD

PRIVACY POLICY

Issued in accordance with the Botswana Data Protection Act No. 18 of 2024

Organisation: Nthoppa (Pty) Ltd
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1. INTRODUCTION

Nthoppa (Pty) Ltd ("Nthoppa", "we", "our", or "us") respects your privacy and is committed to protecting your personal data. This Privacy Policy explains how we collect, use, store, share, and protect personal information when you access or use the Nthoppa mobile application, website, and related services (collectively, the "Services").

This Policy is issued in compliance with the Botswana Data Protection Act No. 18 of 2024 ("the Act") and applies to all users, customers, agents, partners, and visitors, whether interacting with us digitally or otherwise.

Where we provide links to third-party websites or services, this Privacy Policy does not apply to those third parties. We encourage you to review their privacy policies separately.

By using our Services, you acknowledge that you have read and understood this Privacy Policy.

2. PERSONAL INFORMATION WE COLLECT

We collect personal data that is necessary to provide our services effectively and lawfully. We only collect data that is adequate, relevant, and limited to what is necessary for the purposes set out in this Policy (data minimisation principle).

2.1 Information You Provide Directly

- Full name, date of birth, gender
- National ID number or passport number (see Section 6 regarding sensitive data)
- Contact details (telephone number, email address)
- Account registration details and authentication credentials
- Insurance applications and declarations
- Financial literacy assessments, quizzes, and survey responses
- Communications with customer support, agents, or representatives

2.2 Financial and Transactional Information

- Payment and transaction details (processed via authorised payment service providers)
- Insurance policy details, premiums, and coverage information
- Savings, budgeting, and debt management data
- Rewards, incentives, and gamification data (e.g. Nthoppa Coin)

2.3 Technical and Usage Information

- Device identifiers, IP address, operating system, and app version
- Log files, usage statistics, and interaction data
- Location data (including GPS) where required for verification, insurance, or regulatory purposes
- One-time password (OTP) and authentication logs

2.4 Information from Third Parties

- Insurance underwriters and distribution partners
- Payment processors and financial institutions
- Service providers supporting analytics, communications, compliance, or security

All third-party sources are verified to ensure they provide data lawfully. We do not receive more data from these sources than is necessary for the applicable purpose.

3. HOW WE USE YOUR PERSONAL INFORMATION

We process personal data only for the following specified, explicit, and legitimate purposes:

- To provide financial education, tools, and advisory services
- To issue, administer, and manage insurance products
- To process payments and transactions
- To verify identity and prevent fraud or unauthorised access
- To personalise content, insights, and recommendations (see also Section 10 on automated decision-making)
- To operate quizzes, rewards, and gamification features
- To communicate service updates, notices, and customer support responses
- To comply with legal, regulatory, and supervisory obligations
- To conduct Data Protection Impact Assessments and internal compliance reviews

Nthoppa does not sell personal data to any third party.

4. LEGAL BASIS FOR PROCESSING

We process personal data on one or more of the following lawful bases under Section 26 of the Act:

- Explicit consent — obtained freely, specifically, and unambiguously before processing begins
- Performance of a contract — where processing is strictly necessary to deliver a requested service or fulfil a contractual obligation
- Compliance with a legal or regulatory obligation
- Legitimate interests — where Nthoppa has a legitimate operational interest (such as platform security and fraud prevention), provided that interest does not override your fundamental rights and freedoms

Important: In accordance with Section 27 of the Act, consent obtained as a condition of accessing our services will only be relied upon for processing that is strictly necessary for the performance of that service. Where additional or optional processing is required, separate, specific consent will be sought. Consent bundled with service terms that is not necessary for that service is not considered valid under the Act.

5. SENSITIVE PERSONAL DATA

Certain categories of personal data require heightened protection under Sections 30 and 31 of the Act. Nthoppa collects and processes the following categories of data that may attract this enhanced protection:

- National ID numbers and passport numbers — used for identity verification and regulatory compliance
- Financial vulnerability data — including debt profiles, savings behaviour, and insurance eligibility assessments
- Biometric data — only where it uniquely identifies a natural person, such as fingerprint or facial recognition used for authentication purposes

The legal bases for processing sensitive personal data include:

- Your explicit consent, obtained separately and specifically for this category of processing

- Processing necessary for the performance of insurance contracts or provision of financial services as required by law
- Compliance with legal obligations applicable to Nthoppa as a regulated financial services entity

We apply additional technical and organisational safeguards to sensitive data, including enhanced access controls, encryption at rest and in transit, and stricter retention limits.

6. CONSENT AND YOUR CHOICES

- Consent is obtained at account registration or immediately prior to any specific processing activity for which it is the lawful basis
- Consent for sensitive data is always sought separately and is never bundled with general terms of service
- You may withdraw consent at any time through application settings or by contacting our Data Protection Officer (see Section 15)
- Withdrawal of consent does not affect the lawfulness of processing carried out before withdrawal
- Where consent is withdrawn, we will cease the relevant processing as soon as reasonably practicable, except where another lawful basis applies

7. CHILDREN'S DATA

Nthoppa is committed to protecting the personal data of children in accordance with Section 29 of the Act, which governs the processing of children's data in connection with information society services — a category that includes mobile applications and digital financial services such as those offered by Nthoppa.

7.1 Minimum Age Requirement

Our Services are intended for users who are 18 years of age or older. We do not knowingly provide Services directly to children under the age of 16 without verifiable parental or guardian consent.

7.2 Users Aged 16 to 17

A person aged 16 or 17 may register for and use our Services, provided that:

- Parental or guardian consent is obtained prior to registration, in the manner prescribed by law
- Both the child and the parent or guardian jointly acknowledge consent to the processing of the child's personal data
- We use reasonable technical measures, proportionate to available technology, to verify the user's age and the identity of the consenting parent or guardian

7.3 Children Under 16

We do not knowingly collect or process the personal data of children under the age of 16 without verifiable consent from a parent or person with parental responsibility under the Children's Act of Botswana.

If we discover that we have inadvertently collected personal data from a child under 16 without valid parental consent, we will delete that data promptly and notify the parent or guardian where possible.

7.4 Reporting

If you believe a child under 16 has provided personal data to us without appropriate consent, please contact our Data Protection Officer immediately at info@nthoppa.com.

8. AUTOMATED DECISION-MAKING AND PROFILING

In accordance with Section 33 of the Act, you have the right not to be subject to a decision based solely on automated processing — including profiling — where that decision produces legal or similarly significant effects on you.

8.1 How We Use Automated Processing

Nthoppa uses automated processing and profiling in the following ways:

- Personalising financial content, recommendations, and educational pathways based on your usage patterns and assessment results
- Calculating Nthoppa Coin rewards and gamification scores
- Assessing indicative insurance eligibility and premium estimates based on declared information
- Detecting unusual account activity or potential fraud

8.2 Your Rights Regarding Automated Decisions

Where any automated process produces a decision with a legal or significant effect on you, you have the right to:

- Be informed that such a decision was made by automated means
- Request a human review of the automated decision
- Express your point of view and contest the decision

Final decisions affecting insurance eligibility, account suspension, or financial product access are subject to human oversight and are not made solely by automated systems.

8.3 Profiling Safeguards

All profiling activities are carried out on the basis of lawful processing grounds. We implement appropriate safeguards to ensure profiling does not result in discrimination or violations of your fundamental rights. The logic used in our personalisation and assessment tools is reviewed periodically by our Data Protection Officer.

9. DATA SHARING AND DISCLOSURE

We may share personal data with the following categories of recipients, each subject to contractual obligations to protect personal data and process it only on documented instructions:

- Insurance underwriters, brokers, and reinsurance partners — for policy administration and claims processing
- Payment processors and authorised financial institutions — for transaction processing and regulatory compliance
- Technology and cloud service providers acting as data processors — for hosting, analytics, and communications infrastructure
- Regulatory or law enforcement authorities — where required or permitted by applicable law
- Professional advisers — including legal counsel, auditors, and compliance consultants, under obligations of confidentiality

We do not share your data with third parties for their own marketing purposes. We do not sell personal data.

10. CROSS-BORDER DATA TRANSFERS

Where personal data is transferred outside the Republic of Botswana, Nthoppa ensures that appropriate safeguards are in place in accordance with Section 64 of the Act. Transfer mechanisms we may rely upon include:

- Adequacy determinations — where the recipient country has been recognised as providing an adequate level of data protection
- Standard contractual clauses — approved contractual protections binding the recipient to data protection obligations equivalent to those under the Act
- Binding corporate rules — where data is transferred within a group of companies operating under approved corporate data protection standards
- Explicit consent — where no other mechanism applies and you have been fully informed of the risks

We will inform you of the specific countries to which your data may be transferred upon request. Data transfers are documented in our internal data transfer register, maintained by our Data Protection Officer.

11. DATA PROTECTION IMPACT ASSESSMENTS (DPIAs)

In accordance with Section 58 of the Act, Nthoppa conducts Data Protection Impact Assessments before commencing any processing activity likely to result in a high risk to the rights and freedoms of individuals.

Activities that trigger a DPIA include:

- Processing national ID numbers, passport numbers, and financial vulnerability data at scale
- Using automated systems for insurance eligibility assessment or financial profiling
- Introducing new technologies or processing methods into the platform
- Large-scale processing of sensitive personal data as defined under Sections 30-31 of the Act

Where a DPIA indicates that a processing activity would result in a high risk that cannot be mitigated by safeguards alone, we will consult the Information and Data Protection Commission before commencing that processing, in accordance with the prior consultation procedure under the Act.

DPIA records are maintained by our Data Protection Officer and are available for inspection by the Commission upon request.

12. DATA RETENTION

We retain personal data only for as long as necessary to fulfil the operational, contractual, or legal purpose for which it was collected. Our standard retention periods are:

- General user account data: retained for the duration of the account relationship, plus 12 months following account closure to handle outstanding queries or disputes
- Financial and insurance records: retained for up to seven (7) years as required by applicable financial services and insurance regulations in Botswana
- Identity verification records (National ID, passport): retained for the duration required by AntiMoney Laundering and Know Your Customer regulations — typically five (5) to seven (7) years
- Children's data (where applicable): subject to more frequent review and deleted promptly upon request from a parent or guardian, or upon a child turning 18
- Marketing consent records: retained for three (3) years from the date of last consent, or until withdrawn
- DPIA and compliance records: retained for a minimum of five (5) years

- Aggregated or anonymised data: may be retained indefinitely for analytical and reporting purposes, as it no longer constitutes personal data

When personal data is no longer required, it is securely deleted or irreversibly anonymised using industry-standard methods.

13. DATA SECURITY

We implement appropriate technical and organisational measures to protect personal data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure, or access, in accordance with Section 60 of the Act. Our measures include:

- Encryption of sensitive information at rest and in transit using industry-standard protocols
- Multi-factor authentication (MFA) and role-based access controls
- Secure payment processing in accordance with applicable payment security standards
- Continuous monitoring, intrusion detection, and regular penetration testing
- Staff training and awareness programmes on data protection obligations
- Data processor agreements requiring equivalent security standards from all service providers

No method of transmission over the internet or electronic storage is completely secure. While we strive to use commercially acceptable means to protect your data, we cannot guarantee absolute security.

14. DATA BREACH NOTIFICATION

In the event of a personal data breach, Nthoppa will act in accordance with Section 62 of the Act:

- We will notify the Information and Data Protection Commission within seventy-two (72) hours of becoming aware of a breach where it is likely to result in a risk to your rights and freedoms, unless the breach is unlikely to result in such risk
- We will notify affected individuals without undue delay where the breach is likely to result in a high risk to their rights and freedoms
- Notification to affected individuals will be delivered by email and/or in-app alert and will include: a description of the nature of the breach; the categories and approximate number of individuals affected; the name and contact details of our Data Protection Officer; a description of the likely consequences; and the measures taken or proposed to address the breach
- Notification to individuals may be delayed or withheld only where: appropriate technical safeguards rendered the data unintelligible to unauthorised parties; subsequent measures have eliminated the high risk; or individual notification would require disproportionate effort, in which case a public communication will be made

All breaches, including those not requiring notification, are logged internally and reviewed by our Data Protection Officer.

15. YOUR RIGHTS

Subject to the Act and applicable law, you have the following rights in relation to your personal data. We will respond to all verified requests within thirty (30) calendar days of receipt. This period may be extended by a further sixty (60) days where requests are complex or numerous, in which case we will notify you within the initial 30-day period.

15.1 Right of Access (Section 48)

You have the right to obtain confirmation of whether we process your personal data and, if so, to receive a copy of that data and information about how it is processed.

15.2 Right to Rectification (Section 49)

You have the right to request correction of inaccurate or incomplete personal data without undue delay.

15.3 Right to Erasure (Section 50)

You have the right to request deletion of your personal data where it is no longer necessary for the purpose for which it was collected, where consent has been withdrawn, or where processing is unlawful. This right may be limited by legal obligations requiring us to retain certain data.

15.4 Right to Restriction of Processing (Section 51)

You have the right to request that we restrict processing of your data in certain circumstances, for example while accuracy is contested or an objection is being assessed.

15.5 Right to Data Portability (Section 52)

You have the right to receive personal data you have provided to us in a structured, commonly used, and machine-readable format, and to transmit that data to another controller where technically feasible.

15.6 Right to Object (Section 53)

You have the right to object to processing based on legitimate interests or for direct marketing purposes. Where you object to direct marketing, we will cease that processing immediately.

15.7 Right Not to be Subject to Automated Decision-Making (Section 33)

You have the right not to be subject to decisions based solely on automated processing, including profiling, that produce significant effects. See Section 8 of this Policy for details.

15.8 Right to Lodge a Complaint

If you believe your rights under the Act have been violated, you have the right to lodge a complaint with the Information and Data Protection Commission:

- Website: www.idpc.org.bw
- Physical address: Information and Data Protection Commission, Gaborone, Botswana

How to exercise your rights: Submit a written request to our Data Protection Officer at info@nthoppa.com or by calling +267 75 736 600. We may need to verify your identity before processing your request. We will not charge a fee for reasonable requests.

16. MARKETING COMMUNICATIONS

We will only send marketing communications where you have provided explicit consent or were permitted by applicable law. You may opt out of marketing at any time using:

- In-app notification and marketing settings
- The unsubscribe link included in all marketing emails
- By contacting our Data Protection Officer directly

Opting out of marketing will not affect the delivery of essential service communications such as transaction confirmations, policy notices, or security alerts.

17. COOKIES AND ANALYTICS

We use cookies and similar tracking technologies to enhance functionality, analyse usage, and improve user experience. The categories of cookies we use are:

- Essential cookies — strictly necessary for the operation of the Services (e.g. session authentication, security). These cannot be disabled.
- Functional cookies — enable enhanced features and personalisation (e.g. remembering preferences). You may disable these without affecting core functionality.
- Analytics cookies — help us understand how users interact with the Services so we can improve them. These are only set with your consent.
- Third-party cookies — may be set by analytics or service providers (e.g. crash reporting tools). Details are provided in our Cookie Notice.

Consent: Essential cookies are set without consent as they are technically necessary. For all other cookies, we will request your consent on first use and each time the cookie policy changes materially. You may manage and withdraw cookie consent at any time through your device or browser settings, or via our in-app cookie preference centre.

18. DATA PROTECTION OFFICER

Nthoppa has appointed a Data Protection Officer (DPO) to oversee compliance with this Policy and the Act. The DPO's contact details have been registered with the Information and Data Protection Commission in accordance with Section 57 of the Act.

Role:	Data Protection Officer (DPO)
Organisation:	Nthoppa (Pty) Ltd
Email:	info@nthoppa.com
Phone:	+267 75 736 600
IDPC Registration:	Registered with the Information and Data Protection Commission

19. GOVERNING LAW

This Privacy Policy is governed by and interpreted in accordance with the laws of the Republic of Botswana, including the Data Protection Act No. 18 of 2024 and all regulations and subsidiary legislation made thereunder.

Any disputes arising in connection with this Policy shall be subject to the jurisdiction of the courts of the Republic of Botswana.

END OF PRIVACY POLICY

Nthoppa (Pty) Ltd | info@nthoppa.com | +267 75 736 600